

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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HORACE BENJAMIN,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER ALFREDO SALAZAR and
NYPD DETECTIVE ROBERT MEJIA,

Defendants.

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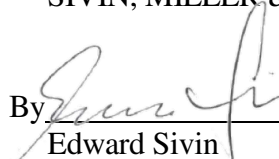
To the above named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 5, 2020

SIVIN, MILLER & ROCHE, LLP

By



Edward Sivin

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

Plaintiff designates
New York County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

To:

THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD OFFICER ALFREDO SALAZAR, c/o NYPD 7th Pct.,
19 1/2 Pitt St, New York, NY 10002

NYPD DETECTIVE ROBERT MEJIA, c/o NYPD 23rd Pct. Detective Squad,
162 E 102nd St, New York, NY 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
HORACE BENJAMIN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER ALFREDO SALAZAR and
NYPD DETECTIVE ROBERT MEJIA,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action, and within ninety (90) days of the dates on which the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained The New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, NYPD Officer Alfredo Salazar (hereinafter “Salazar”) was and is a police officer employed by the NYPD.

5. That at all times herein mentioned, Salazar was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Salazar was acting under color of state law.

7. That at all times herein mentioned, NYPD Detective Robert Mejia (hereinafter “Mejia”) was and is a police detective employed by the NYPD.

8. That at all times herein mentioned, Mejia was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Mejia was acting under color of state law.

THE FACTS

10. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

11. That on August 11, 2019, at or around 108th Street and Madison Avenue, in the County of New York, City and State of New York, plaintiff was forcibly stopped and seized by officers of the NYPD, including but not limited to Salazar and Mejia (hereinafter referred to collectively as “the officers”).

12. That the aforementioned seizure was effectuated without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation.

13. That after forcibly seizing plaintiff, the officers handcuffed plaintiff and, still without a warrant or probable cause, arrested plaintiff and/or caused plaintiff to be arrested.

14. That after arresting plaintiff, the officers caused plaintiff to be confined and

imprisoned against his will at various locations, including but not limited to a police precinct and Central Booking.

15. That plaintiff's confinement and imprisonment continued for approximately one week.

16. That on or about August 11, 2019, the officers also initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging plaintiff with various crimes (including attempted murder) of which plaintiff was innocent and of which the officers knew plaintiff to be innocent.

17. That none of the officers had probable cause to initiate and/or to cause to be initiated criminal charges against plaintiff.

18. That in support of those criminal charges, Mejia signed a Criminal Court Complaint, under penalty of perjury, in which he made allegations against plaintiff that were false and that Mejia knew to be false.

19. That in support of those criminal charges, Mejia and Salazar fabricated evidence, made statements and accusations about plaintiff to fellow officers and to the Office of the District Attorney and others that were false and that Mejia and Salazar knew to be false, and withheld exculpatory evidence.

20. That the fabricated evidence, false statements and accusations, and withheld exculpatory evidence were material in nature and were likely to persuade a court and/or jury as to plaintiff's guilt or innocence.

21. That as a result of the aforementioned prosecution, plaintiff was required to appear in court on several occasions, was subjected to excessive bail, was otherwise deprived of his liberty and freedom, and was restricted in his travel.

22. That the fabricated evidence, false statements and accusations, and withheld exculpatory evidence caused plaintiff to suffer an additional deprivation of liberty beyond that which he would have suffered merely by virtue of any probable cause for the prosecution.

23. That on or about January 9, 2020, all criminal charges against plaintiff were dismissed on the merits and the criminal prosecution terminated favorably to plaintiff.

24. That at all times herein mentioned, Salazar and Mejia were present during and observed the aforementioned illegal and unconstitutional conduct of their fellow officers, had opportunities to intervene to prevent or stop that conduct, and intentionally and deliberately failed and refused to do so.

25. That the aforementioned actions of the officers were intentional, spiteful, and malicious in nature.

26. That as a result of the foregoing actions by the City and the officers, plaintiff sustained physical, emotional, and psychological injuries, was damaged in his name and reputation, endured and will continued to endure pain and suffering and loss of enjoyment of life, incurred and will incur lost earnings and other economic loss, and was otherwise damaged.

FIRST CAUSE OF ACTION SALAZAR and MEJIA

(42 USC § 1983 Claim Arising From Illegal Seizure and False Arrest/Imprisonment)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned forcible stop and seizure and false arrest and false imprisonment of plaintiff by Salazar and Mejia constitute illegal seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC §

1983.

SECOND CAUSE OF ACTION ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of the officers, including Salazar and Mejia, constitute a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION AGAINST SALAZAR and MEJIA

(42 USC § 1983 Claim Arising From Malicious Prosecution)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned malicious prosecution of plaintiff by Salazar and Mejia constitutes an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

FOURTH CAUSE OF ACTION AGAINST SALAZAR and MEJIA

(Denial of Right to Fair Trial Under 42 USC Section 1983)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid actions by Salazar and Mejia constitute denials of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST SALAZAR and MEJIA*(Manuel Claim)*

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by Salazar and Mejia in causing plaintiff to be incarcerated and detained without probable cause and/or based on fabricated evidence constitute a violation of plaintiff's constitutional rights, as articulated in *Manuel v. City of Joliet*, 137 S. Ct. 911, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

SIXTH CAUSE OF ACTION AGAINST SALAZAR and MEJIA*(42 USC § 1983 Arising Out of Failure To Intervene)*

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid injuries to plaintiff were the result of Salazar's and Mejia's intentional and deliberate failure to intervene to prevent and/or stop the illegal and unconstitutional actions of their fellow officers, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY*(Negligent Training, Supervision and Retention)*

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the training, supervision, and retention of the officers, including but not limited to Salazar and Mejia.

41. That all of the foregoing causes of action fall within one or more of the

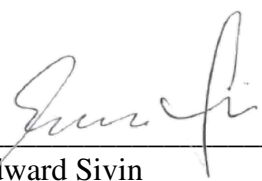
exceptions set forth in CPLR § 1602 with respect to joint and several liability.

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WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Salazar and Mejia in amounts that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against Salazar and Mejia pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
November 5, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

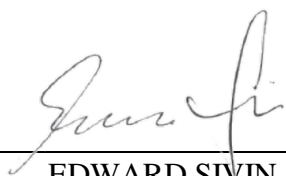
That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff file maintained by your affirmant's office.

Dated: New York, New York
November 5, 2020



EDWARD SIVIN

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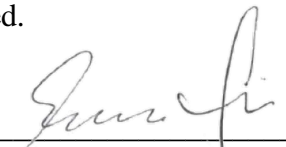
VERIFIED COMPLAINT

SIVIN, MILLER & ROCHE, LLP

Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
November 5, 2020